

Strax Affair

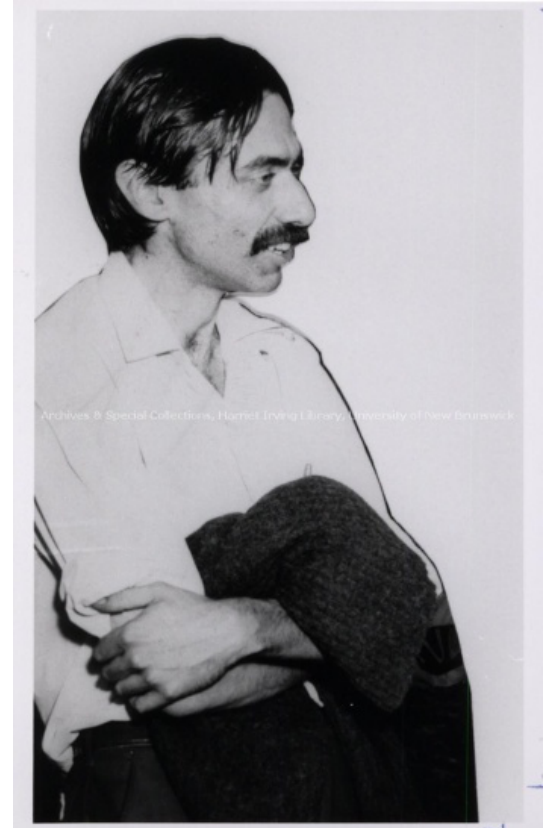
Date(s) of occurrence: September 1968 - July 1969

Origins: During the summer of 1968 UNB decided to introduce identification cards for the fall semester. Assistant professor of physics Norman Strax believed this action to be an "erosion of civil liberties and democracy" and gathered support from some student activists to stage a protest. On September 20 Strax and two students, Clayton Burns and David Hallam, attempted to check out library books at the [Harriet Irving Library](#) but refused to show their ID cards. When the library refused to allow the men to take out the books, they proceeded to inundate the circulation counter with hundreds of books that day and on September 21 and 23. On September 24 Strax was suspended from the university for his actions, and in protest he and some student supporters moved into his office, room 130 of [Loring Bailey Hall](#), on September 27. This room became known as "Liberation 130" and was at the centre of numerous student demonstrations on the UNB Fredericton campus.

Account of events: A court injunction sought by UNB president [Colin B. Mackay](#) removed Strax from university property in early October, but the students protestors remained, much to the displeasure of some other groups of students. Campus support for the student activists of "Liberation 130" was mixed; while the bulk of the student population was characterized as either "indifferent or open minded", there was a small group of sympathizers as well as an equally sized group of students who were demonstrably hostile to the activists. Numerous confrontations between those members of Liberation 130 and other students took place on weekends, with (often drunk) students attempting to forcibly remove the protestors. This led to the breaking of windows; ladders being placed against [Bailey Hall](#) to try and access the room through a window; rocks, beer bottles, eggs, and garbage were thrown at and into the room, and even mild tear gas was used. These students, often from the engineering, forestry, and business administration faculties, staged an attack on Hallowe'en in which 200 people surrounded the outside of Liberation 130 throwing eggs and garbage, shouting obscenities, and breaking windows. Later that night a pipe burst in the room and flooded the rooms below, destroying research documents.

The occupation finally ended, on November 10, when Fredericton City Police removed the protestors and sealed room 130. Charges were initially laid against the protestors, both students and non-students alike, but were later dropped because the University's main goal had been to clear the room. In December, two students, Tom Murphy and John Oliver, were charged with contempt of court for writing and publishing, respectively, an article which criticized Justice J. Paul Barry's handling of Strax's case as well as the general New Brunswick court system. Oliver ended up writing a retraction and paying a \$50 fine, while Murphy wrote an apology and spent ten days in jail.

The [Student Representative Council \(SRC\)](#) originally planned to use student money to help the legal costs of Tom Murphy and John Oliver, and the group passed a motion in late January 1969 to give financial aid to the two men, but the opposition from the Engineering Undergraduate Society and Forestry Association forced the [SRC](#) to rescind the motion in February. Meanwhile the Mobilization SDS resumed activities in January and planned a reoccupation of room 130, but upon entering the room on February 18, activists were promptly removed by the City Police.



Norman Strax, 1966. Acc. 2010.05; Series 1; no. 324, File 12.



Parallel to the student protests during the fall of 1969 was the involvement of the Canadian Association of University Teachers (CAUT), a professional organization of teaching faculty concerned with policies on hiring, firing and the tenure of faculty. CAUT repeatedly expressed disapproval of the manner in which Strax's case had been handled by UNB (especially regarding the reasoning behind Strax's suspension), and they also disapproved of UNB's refusal to create an arbitration committee to resolve the dispute. After several attempts to persuade [Mackay](#) and the Board of Governors to rescind their legal actions, CAUT officially censured UNB on March 15, 1969. This meant that professors across Canada, the United States, and Britain would be advised not to accept employment at UNB, thus raising the potential for current faculty to seek employment elsewhere.



Student demonstration over CAUT censure, 20 March 1969. UA PC-7 no. 20a (1).

The censure served to provide a point of unification for a previously divided student body at UNB. Five days later on March 20, a student demonstration planned by the [SRC](#), with help from the SDS, took place in front of the [Old Arts Building](#) where a Board of Governors meeting was taking place; this demonstration was meant to show the concern of students over the CAUT censure in the hopes that the Board of Governors would act to resolve the issue. More than 1000 students participated and a makeshift coffin, representing the Board of Governors, was burned in front of the [Old Arts Building](#) to symbolize the end of the "old order." At a meeting with students that evening, [Mackay](#) related that the Board of Governors were prepared to set up an arbitration hearing for Strax's case. This was effectively the end of the Strax Affair for students at UNB. The CAUT censure was officially lifted July 18, 1969.

Note(s): Strax's employment contract with UNB officially ended June 30, 1969, and the injunction and damages against Strax were dropped that summer. Strax remained in Fredericton for the next ten years and then left for a position at Wabash College in Indiana, USA. He died in 2002.

Source(s):

- Kent, Peter. *Inventing Academic Freedom: The 1968 Strax Affair at the University of New Brunswick*. Halifax, NS: Formac Publishing Co., 2012. LC72.5 .C3 K46 2012.
- *The Brunswickan* (UA RG 84), vol. 102, 12 September 1968 - 21 March 1969.
- *Alumni News* (UA RG 92), vol. 23, no. 3, Autumn 1969.
- UA Case 173; Section 1, Box 2; Strax Affair.
- Montague, Susan. *A Pictorial History of the University of New Brunswick*. Fredericton: University of New Brunswick, 1992, p. 191-193.

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